



INDIAN POLITY



ELECTION COMMISSION REPRESENTATION OF PEOPLE'S ACT, 1951



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MODULE – 100

IMPORTANT PRACTICE QUESTIONS

MAINS GS PAPER – II
SALIENT FEATURES OF THE REPRESENTATION
OF PEOPLE'S ACT

1

The electoral process of India is guided by the Representation of People Act, 1951. With the new emerging negative externalities in the electoral process, discuss the significance of RPA, 1951.

2

India is the largest democracy of the world based upon the right to vote and contest elections. In this context, critically analyze the challenges faced by the electoral process of India in contemporary times.

IMPORTANT PRACTICE QUESTIONS

MAINS GS PAPER – II
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OF PEOPLE'S ACT

- 3 *The outgoing Chief Election Commissioner, O.P. Rawat recently emphasized upon the need to reform the RPA, 1951 particularly, Section 77 and Section 126 of the RPA, 1951. What are the problems pertaining to these sections and how can it be resolved?*
- 4 *Explain Section 123 of Representation of People's Act 1951? Examine whether mass religious appeals for electoral gains can be categorised as a corrupt practice?*

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 123 OF RPA

CORRUPT PRACTICES

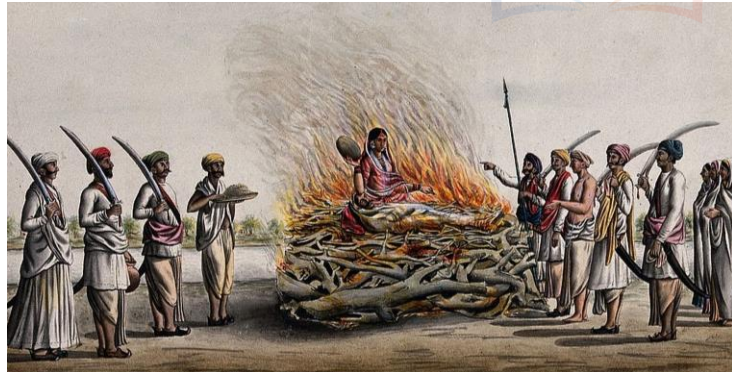


- 1 Bribery:** Any form of gratification (including gift, reward or an offer) to the electors for voting or refraining from voting and to the candidates for withdrawing or not withdrawing nomination is considered as a corrupt practice under RPA.
- 2 Undue Influence:** It includes any direct or indirect interference with the free exercise of any electoral right by the candidate or his election agent.

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 123 OF RPA

CORRUPT PRACTICES



- 3 Appeal to vote or refrain from voting for any person on the **ground of his religion, race, caste, community or language** or the use of, or appeal to religious symbols in the prospect of winning an election.
- 4 The **promotion of feelings of enmity** or hatred between different classes of the citizens of India on grounds of religion, race, caste, community, or language
- 5 The propagation of the practice or the commission of **sati** or its glorification

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 123 OF RPA

CORRUPT PRACTICES



- 6 The publication of any false statement of fact in relation to the **personal character** or conduct of any candidate
- 7 The hiring or **procuring of any vehicle for the free conveyance** of any elector to or from any polling station.
- 8 The incurring or authorizing of expenditure in contravention of 'Account of **election expenses and maximum limit**' prescribed by RPA, 1951 under **Section 77**.

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 123 OF RPA

CORRUPT PRACTICES



SORRY BROTHER, WE DON'T NEED ANY BOOTH CAPTURERS THIS TIME. WE HAVE ALREADY HIRED COMPUTER HACKERS TO MANIPULATE THE ELECTRONIC VOTING MACHINES!

- 9 The obtaining or procuring or abetting any assistance for the furtherance of the prospects of that candidate's election, from any person in the service of the Government.
- 10 Booth capturing by a candidate or his agent or other person.



REPRESENTATION OF PEOPLE'S ACT, 1951



SECTION 126 OF RPA

PROVISIONS

- Section 126 of the RP Act prohibits displaying any election matter by means, inter alia, of television or similar apparatus, during the period of 48 hours before the hour fixed for conclusion of poll in a constituency.
- It prohibits any propagation of election matter to the public by holding, or by arranging the holding of, any musical concert or any theatrical performance.

CONS OF THIS SECTION

- The bare act doesn't mention anything about social media. Even on the day of the election, you can see sponsored Facebook ads of different political parties.
- There are no statutory provisions dealing with media houses.
- Since this act pertains to politicians themselves, there is a lack of political will amongst the lawmakers to plug the loopholes of this act.

The act failed to keep pace with changing times!

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 126 OF RPA

REFORMS SUGGESTED BY UMESH SINHA COMMITTEE

Google
bing
YAHOO!



- 1 **Internet service providers and social media companies** should take down content violating the 48-hour ban on campaigning prior to polling, instantly and latest within 3 hours of EC issuing such a direction.
- 2 Amend Section 126(1) of R P Act to impose the **“campaign silence period” on print, electronic media and intermediaries**. The definition of intermediaries, as per Section 2(w) of the IT Act, includes telecom service providers, internet service providers, web-hosting service providers, search engines, etc.

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 126 OF RPA

REFORMS SUGGESTED BY UMESH SINHA COMMITTEE

IN NEWS: ELECTION COMMISSION BARS PARTIES FROM RELEASING MANIFESTOS 48 HOURS BEFORE POLLING

- The EC has now made the release of election manifestos a part of the MCC, which is a set of rules to be followed by parties after elections are announced.
- The amended model code now states, “In case of single phase election, **manifesto shall not be released during the prohibitory period**, as prescribed under Section 126 of the RoPA, 1951”.
- “In case of multi-phase elections, **manifesto shall not be released during the prohibitory periods**, as prescribed under Section 126 of the RP Act of **all the phases of those elections.**”

3 Bring in changes in the model code of conduct to ensure that **parties release their manifesto at least 72 hours prior to polling** (or 72 hours prior to polling for first phase in a multi-phase election).

4 **Star campaigners should desist from addressing press conferences or giving interviews on election matters during silence period.**

REPRESENTATION OF PEOPLE'S ACT, 1951



SECTION 126 OF RPA

REFORMS SUGGESTED BY UMESH SINHA COMMITTEE

- 5 Intermediaries should ensure that their platforms are **not misused to vitiate free and fair polls**. This would include a notification mechanism by which EC may notify the platform of potential violations of Section 126 of Representation of People's Act.
- 6 While EC will appoint an **officer to liaise with the intermediaries**, the latter should open a **special grievance redressal channel for EC** and have a dedicated team during election period to interface with and take quick action on receipt of EC order to take down or disable content in violation of R P Act.

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 126 OF RPA

REFORMS SUGGESTED BY UMESH SINHA COMMITTEE



- 7
 - Intermediaries should report to the Commission on measures taken to prevent abuse of their platforms, including generating publicly-available action taken reports.
 - All **political advertisements** may be clearly labelled as such and **be pre-approved** by a EC-appointed content monitoring committee.

- 8 The intermediaries would also need to maintain a repository of political advertisements with information on their **sponsors, expenditure and targeted reach.**

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 126A OF RPA



“Exit poll” means an opinion survey estimating how electors have voted at an election or how all the electors have performed with regard to the identification of a political party or candidate in an election.

PROVISIONS

The provision prohibits conduct of Exit poll and dissemination of their results during the period mentioned therein, in the hour fixed for commencement of polls in the first phase and half hour after the time fixed for close of poll for the last phase in all the States.



REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 151 (A) OF RPA



BY-ELECTIONS IN INDIA
A Phenomenon worth Observing



WHAT IS THIS SECTION ALL ABOUT?

- It mandates the Election Commission to fill the casual vacancies in the Houses of Parliament and State Legislatures through **by-elections** within six months from the date of occurrence of the **vacancy**.
- This is to be done provided that the remainder of the term of a member in relation to a **vacancy** is one year or more.

REPRESENTATION OF PEOPLE'S ACT, 1951

SECTION 151 (A) OF RPA

WHAT IS THE CONTROVERSY BEHIND IT?

- Experts recently wrote to the President questioning the rationale behind holding by-elections close to general elections in the states of Andhra Pradesh and Karnataka.
- They questioned the EC's move as the announcement of by-elections to parliamentary constituencies were only in Karnataka while there were vacant constituencies in Andhra Pradesh too.

WHAT WAS THE REPLY GIVEN BY ECI?

Case of Karnataka:

Vacancies occurred more than one year before the expiration of the term of House, thus by-elections were required to be held to fill these vacancies within six months from the date of occurrence of vacancies.

Case of AP:

There is no need to hold by-elections as the remaining term of the Lok Sabha is less than one year from the date of occurrence of vacancies.

REPRESENTATION OF PEOPLE'S ACT, 1951

OTHER ELECTORAL OFFENCES MENTIONED IN RPA

- 1 **SEC 125:** Promoting Enmity between classes on grounds of religion, race, caste in connection with election
- 2 **SEC 126:** Prohibition of public meetings during period of 48 hours before the actual polling.
- 3 **SEC 126A:** Restriction on publication and dissemination of result of exit polls, etc.
- 4 **SEC 128:** Maintenance of secrecy of voting
- 5 **SEC 130:** Prohibition of canvassing in or near polling stations.
- 6 **SEC 131:** Penalty for disorderly conduct (Ex use of loudspeakers etc) in or near polling stations.
- 7 **SEC 135A:** Offence of booth capturing.
- 8 **SEC 135C:** Liquor not to be sold, given or distributed on polling day.



QUESTION

The Representation Of People's Act 1951 was in news recently. In this context consider the following sections present in the Act.

LIST – I		LIST – II	
1) Section 126		It prohibits displaying any election matter by means of television or similar apparatus during the period of 48hrs before the hour fixed for conclusion of poll in a constituency.	
2) Section 126 A		Prohibits conduct of exit poll and disseminations of their results	
3) Section 151 A		It specifies about the procedure for by-election, which must be held with in 6 months from the date of occurrence of the vacancy.	

Which of the above is not correctly matched?

- | | |
|---------------|----------------------|
| a) 3 only | b) 2 & 3 only |
| c) 1 & 2 only | d) None of the above |

ANSWER: D

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